

FIRST ENDORSEMENT

Chief Prosecutor, Administrative Prosecution Unit, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, September 2, 2025. Contents noted. Recommend approval of the negotiated settlement agreement in PODS No. C-033707 against Police Officer John Tobin, Tax Registry No. 971705. The case was conferenced on August 21, 2025, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the negotiated settlement of a Schedule "B" Command Discipline and the forfeiture of ten (10) vacation days. Charges and specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-033707BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, TOBIN	FIRST JOHN	M.I.	COMMAND 044
SHIELD NO. 20289	TAX REGISTRY NO. 971705	SOCIAL SECURITY NO.	DATE APPOINTED	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer John TOBIN, on or about October 29, 2023, at approximately 2319, while assigned to 044 PCT and on duty, in the vicinity of 949 Ogden Avenue, Bronx County, wrongfully used force, in that PO Tobin used physical force against § 87(2)(b) by shoving her head/neck against a police car without police necessity.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER

09/09/25
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

9/10/23
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, September 9, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-033707 (CCRB Case No. 202310781) against Police Officer John Tobin, Tax No. 971705, with the recommendation that the Charges and Specifications against Police Officer Tobin be dismissed and that he receive a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation day. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

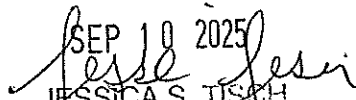


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

SEP 10 2025

JESSICA S. TISCH
POLICE COMMISSIONER